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Q- The Directive Principles of State Policy provide a roadmap for a welfare state, but their non-justiciable nature often limits their implementation. In this context, critically examine the conflict between DPSPs and Fundamental Rights, citing landmark judgements and constitutional amendments.

Ans. Article 36-51 enshrined in Part IV, of constitution aim to establish socio-economic democracy and a welfare state. Both DPSP and Fundamental Rights strive for constitutional goals but conflict arises when implementing DPSP requires restricting certain Fundamental Rights (FRs).

Aspect	Fundamental Rights	DPSP
Nature	Imposes restrictions on state (negative)	Imposes obligations on state (positive)
Form	FR in the form of rights	DPSP in the form of directives

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Aspect	Fundamental rights	DPSP
Purpose	Protect individual rights and liberty	Guides the state for welfare of people
Justiciability	Justiciable i.e., legally enforceable in courts	Non justiciable i.e., not enforced by courts

Conflict between FR and DPSP —

The justiciability of Fundamental Rights and non-justiciability of DPSP on one hand while moral obligation of State to implement DPSP on the other hand have led to the conflict between the two since the commencement of the constitution.

① Right to property Vs Social Justice

↳ FR : Article 19(1)(f) repealed and Article 31 (Right to property)

↳ DPSP : Article 39 (b) & (c) (Equitable distribution of wealth)

e.g., K-shaped recovery

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② Personal Laws Vs Uniform Civil Code

- ↳ FR : Article 25 - 28 (Freedom of religion)
- ↳ DPSP : Article 44 (Uniform civil code)
eg, Shah Bano case, Triple Talaq

③ Reservation in Education and Employment Vs Right to Equality

- ↳ FR : Article 15 & (Right to equality)
Article 16 & (Equal opportunity)
- ↳ DPSP : Article 46 (Promotion of SC, ST
and other weaker sections)
eg, EWS reservation

Cases —

① Champakam Dorairajan Case :

- ↳ Reservation Vs Right to Equality
- ↳ FR would prevail over DPSP and
DPSP would run as subsidiary

② Golaknath case :

- ↳ Can Parliament amend FRs?
- ↳ Parliament cannot abridge the FR
which are sacrosanct

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③ Keshavananda Bharati case :

- ↳ Can Parliament override FR ?
- ↳ Parliament can alter the FR but subjected to basic structure doctrine

④ Minerva Mills case :

- ↳ Can DPSP override FR ?
- ↳ Indian constitution is found on the bedrock of balance ~~between~~ between FR and DPSP. The goals set out by DPSP have to be achieved without the abrogation of Fundamental Rights.

Constitutional Amendments —

① 1st Amendment (1951) :

- ↳ Enabled reservations for backward classes, allowing affirmative action
- ↳ It overcame Champakam Dorairajan case.

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② 25th Amendment (1971) :

- ↳ Allowed article 39 (b) & (c) to override fundamental rights
- ↳ Parliament got power to abridge any right by enacting constitutional amendment act

③ 42nd Amendment (1976) :

- ↳ It gave primacy to DPSPs over FRs
- ↳ It was later struck down in Kesavananda Bharati case for violating the Basic Structure

④ Challenges in Harmonising DPSPs and Fundamental Rights —

① Capacity of State —

- ↳ Low tax to GDP ratio.
- ↳ As per NITI Aayog our tax to GDP ratio is only around 18% while for OECD it is 35%.
- ↳ Welfare driven DPSPs require substantial finances but capacity of our State is limited

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② Individual rights and collective welfare —

↳ Balance between individual liberty and socio-economic reforms remains challenging

e.g., Right to privacy is a FR which clashes with welfare policies requiring personal data

③ Economic Inequality —

↳ DPSP prohibits concentration of wealth but present economic landscape favours concentration of wealth

↳ After COVID-19 we see there is K-shaped recovery.

④ Non-justiciability of DPSP —

DPSP are not enforceable in courts making their implementation dependent on the political will of the government.

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WAY FORWARD —

- ↳ Courts must ensure that DPSPs and FRs are harmonised as said in Minerva Mills case.
- ↳ Increase budget allocation for social welfare
- ↳ Before bringing reform in personal laws there should be gender justice.

We need progressive legal reforms, better financial planning and stronger political commitment to ensure both fundamental rights and DPSP are upheld in a balanced manner.

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Q- With globalisation, economic liberalisation and emerging social challenges, do you think the Directive Principles remain relevant today? Critically assess their contemporary significance and suggest how they can be made more effective in the modern policy framework.

Ans. The Directive Principles of State Policy enshrined in part IV of constitution serves as blueprint for socio-economic justice. With globalisation, economic liberalisation many challenges have emerged but DPSPs have shaped our welfare policies.

① Economic Justice —

↳ Post 1991 liberalisation created new economic opportunities but also widened wealth gaps.

↳ As per OXFAM report, top 10% of population controls 77% of wealth

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DPSPs relevance :

Article 35 (b) and (c) influenced Corporate Social Responsibility mandates, PM Garib Kalyan Yojana to reduce income disparities.

② Social Inequality —

Despite affirmative action, caste discrimination, gender inequality, religious discrimination persist.

DPSPs relevance :

Article 46 influenced reservation policies for SC, ST and other weaker sections. Introduction of 10% EWS reservation.

③ Labour Rights —

The rise of gig economy, contractual jobs and informal labour demands need social protection.

DPSP relevance :

Article 43 provides them with social security
e.g., e-shram portal, Code on Social Security (2020)

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④ Food and Nutritional Security —

There is persistent issue of malnutrition, hunger. India ranks 107 / 121 in the Global Hunger Index.

DPSP relevance :

Article 47 provided for creation of National Food Security Act (2013).

Mid-day meal scheme to ensure children receive nutritional support.

⑤ Women Empowerment —

Women continue to face discrimination at workplace, also there is safety issue.

DPSPs relevance :

Article 42 inspired the Maternity Benefit Act and article 39(d) provided for equal pay for equal work.

⑥ Environmental Protection —

Rising environmental degradation, climate change, pollution demand proactive environmental policies.

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DPSP relevance :

Article 48 A shaped policies like National Green Tribunal Act 2010

Article 51 A encourages citizen participation in environmental protection.

Critical analysis of contemporary significance —

Aspect	DPSP's significance	Challenges in implementation
Welfare policy	Laws like Right to Education (2009), MGNREGS (2005), Food Security Act (2013).	Limited fiscal capacity of state, also dependent upon political will
Sustainable development	Article 48 A led to National Green Tribunal (2010), India's Net Zero Target (2070)	Industrial growth is prioritised over environmental protection.
Labour rights	Article 43 and 43 A led to policies like code on wages and protection policies for gig workers	No comprehensive social security law for gig workers

इस हाशिए में केवल प्रश्न संख्या लिखें।

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Gender justice	Reservation for women in Parliament and state legislatures like Nari Shakti Vandan Adhiniyam	Workforce participation of women remains below 35% despite progressive law. Also, we see <u>glass-ceiling</u> in corporates.
Education and Skill development	Article 45 & 46 led to Right to Education Act, PM Kaushal Vikas Yojana	Lack of funding, inadequate teacher training, dropout rates, low skilled population facing job less
Health and Nutrition	Article 47 Shaped Ayushman Bharat, Mid-day meal, National Nutrition Mission	High out of pocket expenditure on health, healthcare infrastructure gaps. India spends only 2.1% of GDP on healthcare

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Suggestions —

↳ Develop mechanisms to give DPSP more legal weight and enforceability

↳ Allow limited judicial review in cases of gross non-compliance

↳ Some of the DPSPs are outdated so a comprehensive review could help modernise the principles to better reflect socio-economic realities and aspirations.

↳ Develop more concrete action plans, timelines and measurable targets for implementing DPSPs.

↳ Ensuring adequate financial and human resources are allocated for implementation of DPSP.

In the wisdom of hindsight it can be easily seen DPSP has served as a beacon light for the governance of the country. With the expansion of state capacity more and more DPSP will turn into enforced rights.